

The Tribunal held that the incident of alleged discrimination was the issuance of the Trespass Notice in July 2004, rejecting the argument that the continuing effects of an act of alleged discrimination constitute further acts of discrimination. The Tribunal concluded that the applicant had failed to establish "good faith" within the meaning of the legislation. Therefore, the application was dismissed.

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LANDLORD AND TENANT BOARD

Associate Chair's Message

Lilian Ma, Associate Chair **Alternate Executive Chair**
Landlord and Tenant Board *Social Justice Tribunals Ontario*

I am pleased to report that over the past year, the Landlord and Tenant Board has continued to function well in fulfilling its dual mandate: providing information to landlords and tenants about their rights and obligations and providing dispute resolution through adjudication and mediation. I am grateful to the Board Members and staff who work together so effectively as a team in delivering these important services to tenants and landlords.

My appreciation and thanks also go to Laura Bryce, Chief Operating Officer, and the senior management team of the Board, including Vice Chairs, Regional Managers and Managers of Customer Service, as well as the Legal Services Branch and Program Development Unit, who all play important roles in the management, policy, training and committee work they do for the Board.

I sincerely thank stakeholders from the landlord and tenant communities for their valuable feedback and input by way of regular meetings, correspondence and consultation. Our on-going dialogue ensures that both landlord and tenant groups have a voice in the development of procedures, forms, Rules of Practice and Interpretation Guidelines.

I also acknowledge the valuable support of my Executive Assistant, Suzanne Evans, and my Administrative Assistant, Sue Woodland, for the excellent coordination of the many tasks of the Associate Chair's office.

The highlight of the past year for the Board occurred on January 25, 2011, when the LTB became part of Social Justice Tribunals Ontario. We are looking forward to opportunities to work with our other tribunal partners in a cluster setting, sharing our knowledge, expertise and resources, and working together to be even more effective for our clients.

As a result of the cluster initiative, in March 2011, we transitioned from the Ministry of Municipal Affairs and Housing (MMAH), the LTB's host ministry for many years, to the Ministry of the Attorney General. I would like to express my sincere appreciation to MMAH for its valuable corporate support to the Board throughout the years.

The key initiatives of the Board over the past year include a regional realignment of its offices, stabilizing and enhancing the Board's case management system (Cmore), and achieving Level 1 certification from the National Quality Institute. For information about these initiatives, please refer to the "Year in Review" section of this report.

Role of the Board

Section 1 of the *Residential Tenancies Act, 2006* (the RTA) sets out the purposes of the Act, as follows:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

Dual Mandate

The RTA, which establishes the Landlord and Tenant Board (LTB), confers a dual mandate on the Board.

Dispute Resolution

First, the LTB has a mandate to resolve disputes between landlords and tenants. The RTA confers the LTB with the power to exercise a quasi-judicial function under subsection 168(2) of the RTA, which provides that the Board has jurisdiction to determine all applications under the RTA, and section 174, which provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the RTA.

The RTA also anticipates the role of mediators to augment the quasi-judicial function of adjudication.

From April 1, 2010, to March 31, 2011, the Board received 77,393 applications filed under the RTA.

When landlords and tenants are unable to resolve disputes on their own, they may choose to come to the LTB to have it resolved. Parties to an application are entitled to a hearing before a Board Member.

At the hearing, the parties present their evidence and arguments and the Member decides the outcome by applying the law to the evidence that is relevant to the issues in the dispute.

The decision is in the form of a written order that can be enforced through the court system. Thus, an order of the Board for eviction is enforced through the Sheriff's office; an order for the payment of money is enforced through the Small Claims Court.

Provision of Information

Second, pursuant to section 177 of the RTA, the LTB is required to give information to landlords and tenants about their rights and obligations. In fulfilling this mandate, the Board's Call Centre handles customer inquiries, in both English and French, through toll free lines.

In the Greater Toronto Area, the phone number is (416) 645-8080; outside Toronto the number is 1-888-332-3234. Customer Service Officers are available during regular business hours. An automated telephone service answers frequently-asked questions 24 hours a day, seven days a week. This year, the Board responded to approximately 500,000 telephone calls.

The Board has eight offices that offer full service to clients. At those offices, landlords and tenants can file applications and obtain information, as well as attend hearings and participate in mediation.

The Board also has 33 off-site hearing locations to which Board Members and mediators travel for hearings on a regular basis. There are also a number of locations in the northern parts of the province where the Board regularly holds hearings electronically.

Mission Statement

The mission of the Landlord and Tenant Board is to inform landlords and tenants about their rights and responsibilities under the *Residential Tenancies Act* and provide balanced and timely dispute resolution in accordance with the law.

The Year in Review

In 2010-2011, the Landlord and Tenant Board continued to deliver its services to Ontario landlords and tenants by providing information on their respective rights and obligations and resolving disputes filed as applications to the Board. The Board strives to improve service delivery to its clients. Over the past year, this has been demonstrated through a regional realignment, NQI certification, eGovernment initiatives and amendments to the Board's Rules and Guidelines. This section also looks at application processing trends over the past year.

Regional realignment

Effective July 1, 2010, the Board implemented a regional realignment as part of modernizing the LTB's regional office structure and focused on streamlining business processes to improve service levels. The new office structure enables the Board to make the best use of existing resources to achieve stability in the organization and remain responsive to stakeholder needs. These changes include merging the Toronto East, Toronto North and Toronto South regions into one Greater Toronto Region, reporting to a single Toronto Regional Manager. The three existing Toronto regional offices have been renamed as District Offices. The Board also created a centralized unit with the expertise needed to improve consistency and quality in the processing of applications for above-guideline rent increases (AGIs) and automatic rent reductions (A4s).

NQI Certification

On April 27, 2010, Dr. Lilian Ma, Associate Chair, and Laura Bryce, Chief Operating Officer, accepted the Level 1 certificate from the National Quality Institute (NQI) on behalf of the Landlord and Tenant Board. NQI is Canada's authority on organizational excellence. Founded in 1992 by Industry Canada, it is an independent, not-for-profit organization committed to advancing organizational excellence across Canada (www.nqi.ca).

eGovernment

The Board's bilingual website, tribunalsontario.ca/lrb, received approximately 1.5 million hits each month over the past fiscal year. All Board forms, Rules of Practice, Interpretation Guidelines, complaint procedures, Policy on Accessibility and Human Rights, and Selected Decisions are available on the website.

The Board has been developing five public education videos to improve accessibility to information about the Board's processes. These videos will be posted on the Board's website in English and French. Captioned versions will also be played in the waiting areas of the Board's offices.

In April 2009, the Board began phasing in its new case management system. At the beginning of the fiscal year covered by this report, the Board transitioned to the new system, and work began on improving its functionality and exploring opportunities for developing additional eServices for application filing. This work will continue throughout the next fiscal year.

Rules and Guidelines

Section 176 of the RTA provides that the LTB can make rules of procedure and nonbinding Interpretation Guidelines. While a Member may waive certain Rules in appropriate circumstances, some Rules have a non-waiver provision. Interpretation Guidelines, on the other hand, while not binding on Members in their decisionmaking, are generally to be followed unless there is valid reason not to do so.

On January 4, 2011, the Rules and Guidelines committee released revised versions of a number of rules and guidelines. These newly revised rules and guidelines can be identified by the release date on the Board's website. At the same time, two new Interpretation Guidelines were released: #18, "Restricting Public Access to InPerson and Electronic Hearings," and #19, "The Landlord's Right of Entry Into a Rental Unit."

Application Processing - Statistical Information

The following section provides statistical details about applications filed with the Board from April 1, 2010, to March 31, 2011, showing the distribution of applications by application type and by region, the number of applications filed and resolved, as well as the number of reviews and appeals.

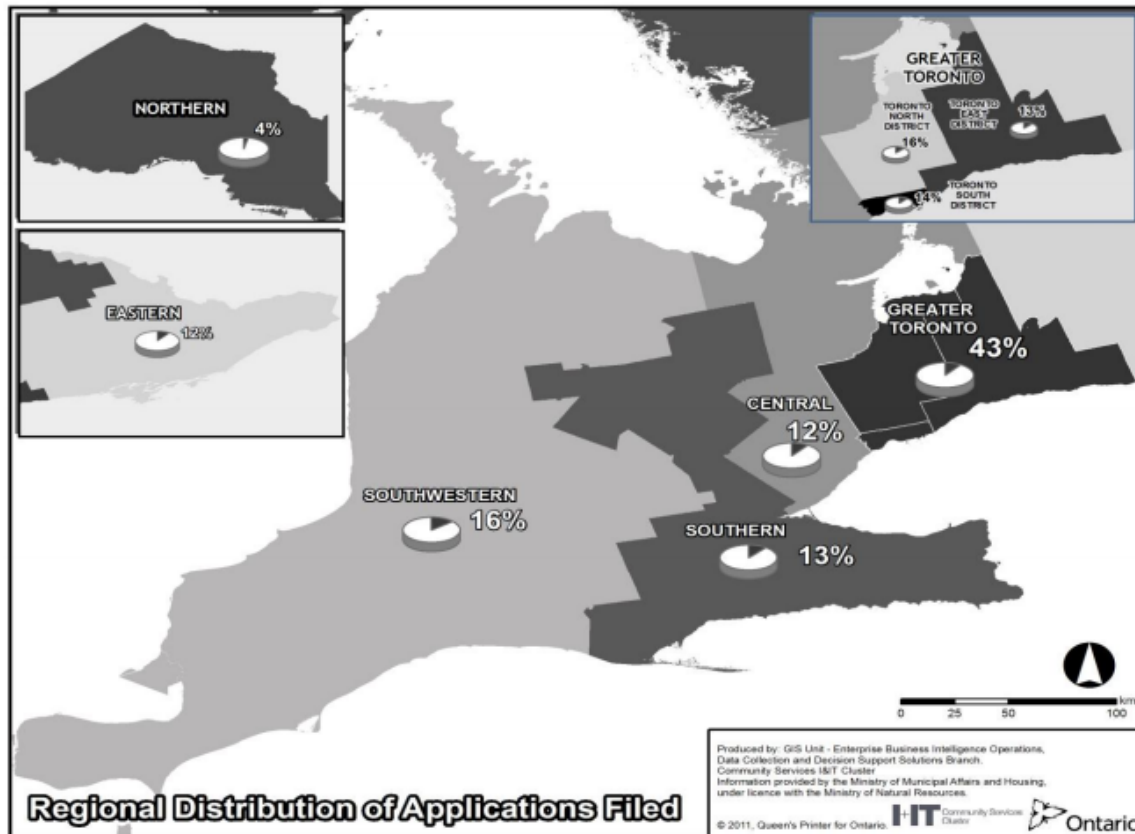
Landlord vs. Tenant Receipts

As mentioned earlier, the Board received 77,393 applications this fiscal year, which represents a decrease of 678 applications (0.9%) from the 2009-2010 workload. The distribution of application receipts has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to the Board's predecessor, the Ontario Rental Housing Tribunal. This past year was no exception.

Landlords filed 91% of the applications, and tenants filed 9%.

Regional Distribution of Applications

The regional distribution of applications filed with the Board is as follows:



Applications by Type

Terminations of tenancy and eviction applications continue to represent the bulk of the Board's workload. Of the total applications received by the Board, 71.8% were for termination of tenancy because of arrears of rent. The following charts show the distribution of the Board's workload, by type of application, for the 2010-11 fiscal year.

Landlord Applications by Type

Case Type	Application description	# of Cases
A1 (0.1%)	Determine Whether the Act Applies	48
A2 (0.3%)	Sublet or Assignment	199
A3 (4.3%)	Combined Application	3,066
A4 (0.3%)	Vary Rent Reduction Amount	182
L1 (75.3%)	Terminate & Evict for Non-Payment of Rent	53,182
L2 (8.7%)	Terminate for Other Reasons & Evict	6,158
L3 (1.5%)	Termination Tenant Gave Notice or Agreed	1,075

L4 (6.8%)	Terminate the Tenancy: Failed Settlement	4,805
L5 (0.6%)	Rent Increase Above the Guideline	391
L6 (0.01%)	Review of Provincial Work Order	7
L7 (0.001%)	Transfer Tenant to Care Home	1
L8 (0.04%)	Tenant Changed Locks	26
L9 (2.1%)	Application to Collect Rent	1,499
Total		70,639

Tenant Applications by Type

Case Type	Application description	# of Cases
A1 (0.44%)	Determine Whether the Act Applies	30
A2 (0.73%)	Sublet or Assignment	49
A3 (18.12%)	Combined Application	1,224
A4 (0.00%)	Vary Rent Reduction Amount	0
T1 (7.70%)	Rent Rebate (e.g. illegal rent)	520
T2 (53.10%)	Tenant Rights	3,587
T3 (0.64%)	Rent Reduction	43
T4 (0.01%)	Failed Rent Increase Above Guideline	1
T5 (1.89%)	Bad Faith Notice of Termination	128
T6 (17.34%)	Maintenance	1,171
T7 (0.01%)	Suite Meters	1
Total		6,754

Applications filed under the TPA

During the 2010-2011 fiscal year, in addition to its RTA workload, the Board continued to resolve applications that had been filed under the *Tenant Protection Act, 1997* (the TPA), the legislation in effect prior to the implementation of the RTA, but which remained unresolved on January 31, 2007, when the RTA was proclaimed. As of March 31, 2011, only three TPA applications are still outstanding. One case is being reheard as a result of a previous appeal to the Divisional Court, one case has been adjourned sine die and the remaining case is still being heard.

Performance Targets

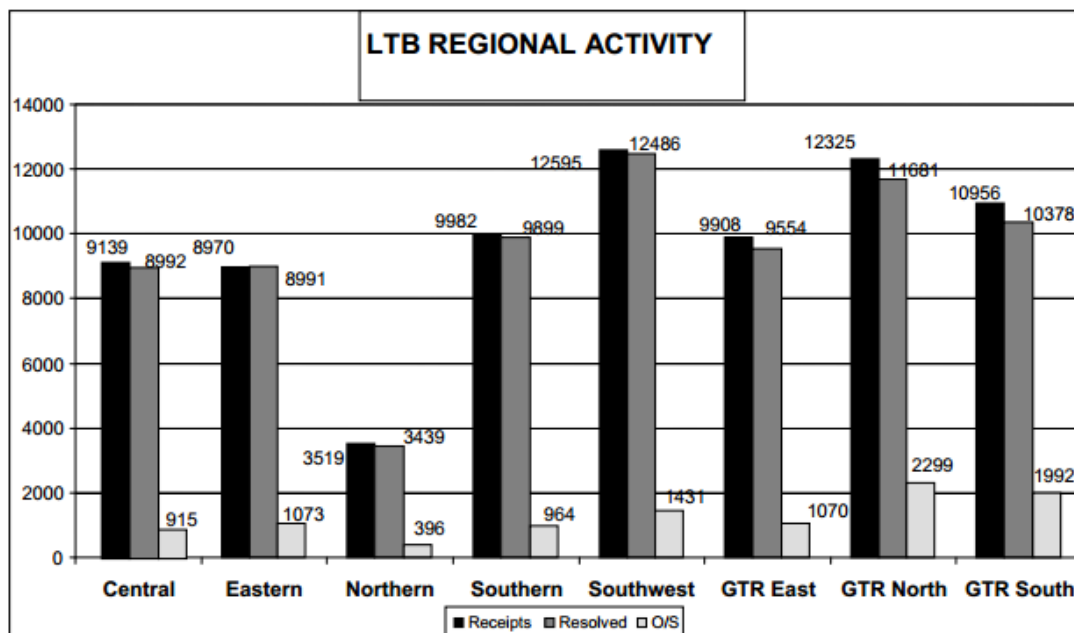
The Board has begun preliminary work to develop performance targets for various aspects of service delivery to

its clients. As a starting point the Board continues to track statistics on a number of its processes with consideration being given to the measures that can be put in place. This work will inform the development of both Board-specific and cluster wide service standards in the coming year.

Application Resolution

At the end of the last fiscal year, the Board had 8,166 pending applications. During the 2010-2011 fiscal year, the Board received a total of 77,393 applications and resolved 75,420 applications. As a result, on March 31, 2011, the number of unresolved RTA applications was 10,140. This number represents approximately seven weeks work at the Board, which is the workload appropriate to warrant smooth and continuous operation for the Board. The following chart shows how application receipts and resolutions have remained relatively constant during the year.

For the 2010-2011 fiscal year, the Board received 2,082 requests for review. Of the reviews resolved during this time period, approximately 65% were sent to a hearing. The Board also received 160 Notices of Appeal of Board orders.



Average Processing Times

The Board tracks the length of time from the date an application is filed to the initial hearing date that is scheduled, and the length of time from the final hearing date to the date the order is issued. While most cases are resolved during the initially scheduled hearing, some require more than one hearing appearance. A number of factors, some of which are beyond the Board's control (such as the availability of parties or their representatives, or the re-scheduling of matters that parties have consented to because they wish to continue their negotiations) can affect the length of time between the initial hearing date and the final hearing date.

The processing times generally correspond to the complexity of the application types. Over the past fiscal year, on average, hearings for L1 applications (evictions for non-payment of rent) were scheduled within approximately five weeks of the date they were filed, and the orders were issued within three days of the final hearings. L5 applications filed by landlords (for above-guideline rent increases) generally involve the lengthiest processes. As a result they were heard, on average, 26 weeks after the application was filed, and the orders were generally issued within three weeks after the hearing. T2 applications (about tenant rights), which tend to be more complex, were heard, on average, within six weeks of their filing date, and the orders were generally issued within six days of the final hearing.

Mediation

The Landlord and Tenant Board employs 21 mediators throughout the province to provide voluntary mediation services to parties involved in applications before the Board. In the 2010-2011 fiscal year, approximately 40% (11,548) of all applications where both parties showed up at the hearing were successfully resolved through mediated agreements and/or resulted in consent orders.

Decisions

The following summaries are a sample of the decisions made on different types of applications filed with the Landlord and Tenant Board in various regions during the 2010-2011 fiscal year. The Board posts a number of decisions on its website at tribunalsontario.ca/lrb. These and other decisions are also available on the website of the Canadian Legal Information Institute (CANLII) at www.canlii.org/en/on/onlrb/index/html.

TSL-28199

(April 13, 2010) - s. 61, illegal act - s. 66, impaired safety - s. 83, relief from eviction denied

The landlord applied to evict the tenant for committing an illegal act in the residential complex and seriously impairing the safety of others. The complex provides transitional housing for homeless people.

On several occasions the tenant was in a rage and threatened to kill the manager and blow up the complex. The police were called and the tenant was charged with uttering death threats and prohibited from being near the complex.

The Board found that the death threats are illegal acts and that the tenant's volatile and violent conduct impaired the safety of others. These acts have affected the character of the premises.

The Board also found that the tenant's death threats were not the result of a mental disorder, and therefore the landlord had no duty to accommodate him. The tenant was given six days to vacate.

TET-06241-10

(August 19, 2010) - s. 31, vital service - s. 12, address for service - s. 191(2), deemed service

The tenants applied for an order determining that the landlord withheld the supply of a vital service. As a preliminary matter, the Board determined that the landlord had not provided the tenants with an address for service, and tried to evade service of the application and notice of hearing after the tenants telephoned the landlord to ask where she could be served. The Board determined that the landlord was aware of the hearing and chose not to attend. The hearing proceeded in her absence.

The Board found that the gas to the rooming house was shut off because the landlord did not pay the bill. The tenants were without gas for 12 days. The Board determined that the landlord had withheld the supply of a vital service and ordered a 50% abatement of rent for the 12-day period of \$198 per tenant, and an additional \$100 for the inconvenience and mental suffering they endured.

EAL-05724-10

(April 28, 2010) - s. 64, interference with lawful right or interest

The landlord and tenants entered into a tenancy agreement that required the tenants to put the water bill for the rental unit in their name and pay for their water use. The tenants failed to do that. Because the water account remained in the landlord's name, the municipality sent the landlord numerous invoices and letters threatening to cut off the water supply unless he paid the water bills. The landlord eventually paid the outstanding amount of \$1342. The landlord applied to the Board to evict the tenants.

The Board determined that the tenants failed to comply with the term in the tenancy agreement requiring them to pay for their water use. This conduct substantially interfered with the landlord's lawful right or interest. The Board ordered the tenants' eviction.

SWT-08650-10-AM

- s. 135, money retained illegally - s. 19, *Frustrated Contracts Act* applies - s. 3 of FCA, sums paid before discharge are recoverable

The tenant applied for an order determining that the landlord collected or retained money illegally.

On September 13, 2009, the rental unit was destroyed by fire. In accordance with the *Frustrated Contracts Act* (FCA), the Board found that the parties were discharged from performance of the tenancy agreement after that date. Applying section 3 of the FCA, the Board determined that the landlord was permitted to retain a pro-rated portion of the rent for the period September 1 to 13; however, the landlord was not entitled to retain the balance of the September rent or the rent deposit.

The Board determined that the landlord had retained money illegally and ordered it to be paid to the tenant.

CEL-03708-10

(May 28, 2010) - s. 82, adjournment - s. 183, Board to adopt most expeditious method of proceeding - Guideline 1, adjournment considerations

At the hearing of the landlord's L1 application, the tenant raised issues under section 82 of the RTA. The tenant then requested an adjournment to prepare for the hearing of the section 82 issues.

The Board denied the adjournment request because the tenant should have been prepared to present his evidence. The Board found that to merely raise issues and then seek an adjournment to gather evidence in support of the issues is not the purpose of section 82. The Board noted that the Notice of Hearing states that parties should be ready to present their evidence and that if "you want to raise any issues that are not in the landlord's application, it is important to bring evidence to this hearing to support your claims."

The Board also considered Guideline 1 and section 183 of the RTA which provide that the Board shall adopt the most expeditious method of determining the questions arising in a proceeding that affords all persons affected an adequate opportunity to know the issues and be heard on the matter. The tenant had been given the opportunity to know the issues for both the landlord's application and under section 82, and should have been prepared to present evidence in support of the issues. After the adjournment was denied, the tenant elected to proceed with the issues raised under section 82.

SWT-09793-10

(September 7, 2010) - s. 52, notice of conversion to nonresidential use - s. 52, compensation - s. 3, waiver or agreement contrary to Act

The tenants applied for an order determining that the landlords collected or retained money illegally.

The landlords had given the tenants a notice of termination for conversion of the rental unit to non-residential use. The notice was void because the termination date in the notice was not the last day of the rental period as required by section 50(2) of the RTA. The tenants vacated based on the notice.

The landlords contended that they had an agreement with the tenants that would allow them to occupy the rental unit beyond the termination date in exchange for the tenants' waiving their right to compensation in an amount equal to three months rent, in accordance with section 52 of the RTA. The Board was not satisfied that there was an agreement because the terms were never settled and there was no specific offer and acceptance. Even if there was an agreement, it was contrary to section 3 of the RTA and the Divisional Court ruling in *1086891 Ontario Ltd. v. Barber*, preventing a landlord and tenant from bargaining away their statutory rights whatever the circumstances. In the result, the landlords were ordered to pay the tenants compensation.

SWL-15272-10

(November 10, 2010) - s. 78, landlord not entitled to apply for ex parte eviction order after mediated settlement satisfied

The settlement mediated by the Board provided that the tenant would pay the outstanding arrears and the regular monthly rent in instalments continuing up to February 2011. The tenant satisfied the mediated settlement by paying the full amount outstanding by September 2010. When the tenant failed to pay the rent for November 2010 the landlord applied ex parte for an order under section 78 of the RTA to evict her.

The Board determined that the tenant's early payment of the full amount satisfied the conditions imposed in the mediated settlement and ended the landlord's right to apply under section 78. The Board noted that this approach is consistent with section 74(2) of the RTA which requires that an application for eviction based on arrears be discontinued if, before an eviction order is issued, the tenant pays the full amount of rent that would have been due under the tenancy agreement. The Board stated that the landlord will have to give a new notice of termination and file a new application for any new arrears that arose after the mediated settlement was satisfied. The landlord's application was dismissed.

TNT-03488-10

(September 30, 2010) - *s. 107, collected money illegally - s. 135, refund*

The tenant applied for an order determining that the landlord retained money illegally.

The tenant had applied for a rental unit in the residential complex. The landlord gave him an application form that required the tenant to provide five items of information and a rent deposit. The tenant provided four items but was not able to provide an employment letter from his employer. Instead, he obtained a letter from the employer's trustee in bankruptcy, but it was not acceptable to the landlord. The tenant then advised the landlord that he would not continue with the application process, and requested a return of his rent deposit. The landlord offered to return the deposit if the tenant paid the landlord a \$250 fee for doing the paper work associated with the application process.

The Board considered the Divisional Court decisions in *Opara v. Cook*, *Drewlo Holdings v. Custidio and Benedetto v. Dineen*. In the Opara and Drewlo cases, the tenant had entered into a tenancy agreement and therefore was not entitled to a refund of the rent deposit. In *Benedetto*, it was determined that the tenants had not entered into a tenancy agreement and the landlord was ordered to refund the deposit. The Board determined that, as in *Benedetto*, the tenant had not entered into a tenancy agreement because the prerequisites in the application had not been met, and ordered the landlord to refund the deposit.

TEL-27008

(April 7, 2010) - *s. 126, above guideline increase - s. 2, municipal taxes and charges - s. 2, utilities - s. 202, real substance*

In 2009 the City of Toronto removed the cost of garbage collection from the landlord's tax bill and placed it on the landlord's "Utility Bill." The landlord applied for an above guideline increase in rent to recover the increased amounts it is now paying for garbage collection because of the change to a user-pay system. The tenants argued that the garbage collection fee is not a municipal tax and charge as defined in section 2 of the RTA and therefore should be disallowed as an extraordinary increase.

The Board determined that, despite the term "utility bill" used to describe the new charges, the charges fall within the definition of "municipal taxes and charges" in section 2 because they are "charges levied on a landlord by a municipality." They are not utilities which are defined as meaning "heat, electricity and water."

The Board determined that the garbage collection fee is properly recognized as a municipal charge and the landlord will receive the rent increase it applied for based on this expenditure.

SOT-08159-10

(December 21, 2010) - *s. 31, interference with enjoyment - tenants' association - administrative fine*

The tenant filed an application for an order determining that the landlord interfered with his enjoyment of the rental unit by interfering with his attempts to form a tenants' association. The tenant posted a recruitment note on

the bulletin board in the lobby for the purpose of forming a tenants' association. The following events then occurred: the tenant received a notice of entry; the tenants' association sent a letter to the landlord requesting repairs; the tenants' association filed a complaint with the city; the landlord gave the tenant a notice of termination because the tenant had a washing machine, dryer and freezer in his unit; the landlord removed from the lobby the bulletin board on which the tenants' association notice was posted.

The Board determined that the notice of termination was given as a reaction to the formation of the tenants' association, and that it substantially interfered with the tenant's enjoyment of the rental unit.

By analogy to section 83(3) of the RTA, which directs the Board to refuse an application for eviction if the reason for the application is that the tenant is attempting to form a tenants' association, the Board held that the RTA is meant to protect tenants who participate in such associations. The Board ordered an abatement equal to one month's rent and an administrative fine of \$500.

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ONTARIO SPECIAL EDUCATION (ENGLISH) TRIBUNAL ONTARIO SPECIAL EDUCATION (FRENCH) TRIBUNAL

Associate Chairs' Messages

Marilyn Thain, Associate Chair

Ontario Special Education (English) Tribunal

As Associate Chair, I am proud of the Special Education English Tribunal's accomplishments and confident that as a member of the Social Justice Tribunals Ontario, we will continue to build on its current foundation and work hard to continue to provide a high standard of adjudicative excellence.

The English Tribunal adjudicates disputes between a parent and a school board concerning the identification and/or special education placement of an exceptional student. The establishment of an expert administrative tribunal to adjudicate such disputes is given curial deference by the courts and is unique to Ontario.

In 2010-2011, the English Tribunal welcomed one new part-time member, reviewed and revised the Tribunal's policies and procedural documents, responded in a timely way to inquiries from parents, school boards, and stakeholder organizations, and continued to keep up-to-date with legislation, policy change and judicial decisions that affect special education in Ontario. We remain informed of issues related to special education to assist in fulfilling our mandate.

Two members successfully completed training in mediation. As a result, the English Tribunal now has eight members who are qualified to offer alternative dispute resolution services to parents and school boards. All parties are offered an opportunity to participate in mediation prior to proceeding to a hearing. The Tribunal's experience with mediation has been successful in resolving and simplifying some of the disputes.

The Tribunal has 11 part-time members; in spite of this small membership, two important documents were developed to enhance agency accountability: a member accountability framework which includes role descriptions for all members and positions, and a merit-based appointment process, which includes a telephone interview, a face-to-face interview and a written assessment component. The appointment process was implemented during 2010 and resulted in a recommendation to appoint one new member from the thirteen applications made to the Public Appointments Secretariat.

During the past few years, many of the appeals to the English Tribunal relate to the special education placement of students who have been identified with autism. Data about the number of appeals, the number of successful mediations and the number and outcome of hearings follows in this report.